

HCJD/C-21

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Murder Reference No. 608 of 2010
The State Versus Bhai Khan

Criminal Appeal No. 2228 of 2010
Bhai Khan Versus The State & another

JUDGMENT

Date of Hearing: 23.10.2014
Appellant by: Mr. Imran Javed Gill, Advocate.
Complainant by: M/s Malik Fazal Karim Awan and Mian Mahmood Rasheed,
Advocates.
State by: Mirza Abid Majeed, Deputy Prosecutor General.

Syed Shahbaz Ali Rizvi, J:- This judgment shall dispose of Criminal Appeal No.2228 of 2010 titled as "*Bhai Khan v. The State & another*" filed by the appellant against his conviction and sentence and Murder Reference No.608 of 2010 titled as "*The State v. Bhai Khan*" transmitted by the learned trial Court for confirmation or otherwise of the sentence of death awarded to the appellant being originated from the same judgment dated 27.09.2010 passed by the learned Additional Sessions Judge, Arifwala, in a private complaint emanated from case F.I.R. No.42, dated 04.02.2007, registered under Sections 302/34 P.P.C., at Police Station Sadar, Arifwala, whereby the appellant Bhai Khan was convicted under Section 302(b) P.P.C., perpetrating the murder of Muhammad Abbas (deceased) and sentenced to death as *Ta'zir*. He was also directed to pay a sum of Rs.100,000/- as compensation to the legal heirs of deceased, as envisaged under Section 544-A of the Code of Criminal Procedure, 1898, and in default thereof to further undergo simple imprisonment for six months. Through the same judgment the learned trial Court

has acquitted Muhammad Khan and Azhar, accused, of the charge levelled against them.

2. Initially, the aforesaid F.I.R. (Ex.CW4/B) was lodged by Ghulam Muhammad, complainant (PW-1) but being dissatisfied with the investigation of the case, whereby Muhammad Khan and Azhar accused were declared innocent by the Investigating Officer, he filed the private complaint (Ex.PA) in which he unveiled that on 04.02.2007, at about 09:00 p.m., the complainant along with Muhammad Ayyub, Azhar Abbas (PW-2) was sitting on platform (*Thara*) in front of his *Baithak*. The electric bulb was lit up. There was a vacant *Ihata* nearby his house. Muhammad Abbas (deceased), the son of the complainant, came from the eastern side and when he reached near the main gate of the house, a few yard away from the *Ihata*, the accused, ambushing in the vacant *Ihata*, appeared. Azhar raised a *lalkara* that Muhammad Abbas be taught a lesson on having illicit relations with Kaneez Bibi. In their view, Bhai Khan, appellant, fired with his pistol which landed on the back of Muhammad Abbas while the fire shot made by Muhammad Khan with his pistol hit on his head. Sustaining injuries Muhammad Abbas fell down. Azhar accused fired at Muhammad Abbas but it missed. On hue and cry raised by the complainant and the beholders, the accused ran away. Muhammad Abbas succumbed to the injuries.

The motive behind the occurrence as described in the private complaint was the suspicion of the accused persons on Muhammad Abbas of having immoral relationship with the maternal aunt of Azhar and Bhai Khan namely Kaneez Bibi.

3. After recording the cursory statement, the appellant along with his co-accused (since acquitted) was summoned to face the trial to which he pleaded not guilty and claimed to be tried.

4. In order to prove its case, the prosecution produced as many as five PWs during the trial. Ghulam Muhammad, the complainant,

appeared as PW-1 who deposed almost on the same lines of the complaint. Azhar Abbas (PW-2) furnished the ocular account of the occurrence. Abdul Majeed (PW-4) is the recovery witness of pistol P-2. Muhammad Asghar (PW-5) identified the dead body in the mortuary. The medical evidence was furnished by Dr. Muhammad Aslam (PW-3) who conducted the postmortem examination of the dead body of Muhammad Abbas, deceased, on 05.02.2007, at 10:00 a.m., and observed as under:-

“1. A lacerated fire arm wound 5.5 x 3 cm on left side of head seven cm above the left ear. No burning and charring around the wound. On dissection there was fracture of skull bone with injury to the underline brain tissue and meninges, blood in the cranial cavity, pieces of bullets recovered from the skull cavity sealed and handed over to police constable. No exit wound.

2. Lacerated fire arm wound 1½ x 1½ cm on front of left side of chest just above the costal margin (entrance wound). No charring and blackening around the wound. On dissection, the wound is extended through the lower ribs into the abdomen on left side rupturing the spleen and excessive bleeding in the peritoneal cavity injuring the small and large gut and going back and making exit wound 1 x 1½ cm on the back on lumber area.”

The doctor was of the opinion that the cause of death was injury No.1 which resulted into fracture of skull bone injuring brain, a vital organ and causing death in ordinary course of nature. All the injuries were ante-mortem and caused by fire arm. The probable time between injury and death was immediate and between death and postmortem 8 to 16 hours. He produced postmortem report Ex.PD, pictorial diagrams Ex.PD/1 and Ex.PD/2.

5. The complainant gave up Muzaffar, Ayyub and Nawaz PWs being unnecessary. He also gave up the remaining PWs and closed his case.

6. The learned trial Court, feeling it necessary, called and examined Ghulam Mustafa, Draftsman as CW-1, Zafar Iqbal, Head Constable CW-2, Muhammad Hussain, Constable CW-3, Saeed Ahmad, ASI CW-4, Abdul Shakoor, Constable CW-5, Muhammad Rustam, Sub Inspector/Investigating Officer of the case CW-6, Shahzad Gul, Inspector/Investigating Officer CW-7, Muhammad Aslam, Head Constable CW-8 and Muhammad Afzal, Sub Inspector/Investigating Officer as CW-9. The learned Assistant District Public Prosecutor, on 13.07.2010, tendered into evidence the reports of the Chemical Examiner, Serologist and Forensic Science Laboratory Ex.PJ, Ex.PM and Ex.PK respectively.

7. The statement of the appellant under Section 342 Cr.P.C. was recorded. He refuted the allegations levelled against him and professed innocence. In answer to the question "*Why this case against you and why the PWs deposed against you?*", the appellant replied as under:-

"It is a false case against me and my co-accused. The PWs have made false statements due to their close relationship with the deceased as well as with the complainant. No independent PW of the locality was cited as PW. It was a blind murder which had been taken place during the odd hours of night and it was load-shedding in the area during the days of occurrence, due to the short fall of water in the dams. The case was registered after preliminary inquiry and investigation after stopping the roznamcha of police station. I and my co-accused have been falsely involved in this case due to suspicion. Deceased of this case was a womanizer and man of immoral character who had a large number of

enemies in the area including one Ahmad Khoja and legal heirs of Mst. Kaneez Bibi. Deceased was done to death by some unknown culprits. The complainant and PWs were not present at the relevant time of occurrence. Thereafter they have made dishonest improvement in their statements as they were not aware with the real facts. The story of complainant was found false during investigation, therefore, the complainant have filed instant complaint much after the occurrence after getting the legal assistance and in order to cover the lacunas.”

8. The appellant did not give evidence on oath as provided under Section 340(2) of the Cr.P.C. in disproof of the allegations levelled against him. However, he tendered documentary evidence in his defence i.e. Ex.DC, Ex.DD and Ex.DE.

9. The learned trial court vide its judgment dated 27.09.2010, found the appellant guilty, convicted and sentenced him as mentioned above.

10. Learned counsel for the appellant contends that the fatal injury causing death of the deceased has been attributed to Muhammad Khan, co-accused, who he has been acquitted of the charge; that the medical evidence speaks otherwise of the injury attributed to Bhai Khan appellant; that Ghulam Muhammad (PW-1) and Azhar Abbas (PW-2) are closely related to the deceased, thus, they are interested witnesses; that the motive set up in the F.I.R. as well as in the complaint is totally unbelievable in the circumstances of the case; that the report of the Forensic Science Laboratory is inconsequential; that Muhammad Khan and Azhar were declared innocent by Shahzad Gul, Inspector (CW-7), however, the complainant insisted through his private complaint that Muhammad Khan fired a shot with his pistol which landed on the head of the deceased and that is sufficient to infer that both the alleged eye-witnesses remained on

1

the same stance that one shot each by Muhammad Khan and Bhai Khan was fired at the deceased; that the learned trial Court has already disbelieved the case of the prosecution set up in the F.I.R. as well as in the private complaint to the extent of Muhammad Khan and Azhar and acquittal of both the accused has not been challenged by the complainant or the State, therefore, the case against the appellant is doubtful and he deserves clean acquittal.

11. The learned Law Officer assisted by the learned counsel for the complainant while opposing this appeal contends that the appellant is nominated in a promptly lodged F.I.R. wherein the police was informed within one hour of the occurrence with a specific role attributed to the appellant of causing firearm injury on the person of the deceased; that the police remained in league with the appellant; that if there are some lacunas in the police investigation keeping in view the private complaint, the same do not affect the prosecution case in its totality and that the stance taken by the complainant and Azhar Abbas (PW-2) that the shot fired by the appellant had hit the back of the deceased is a result of confusion created in such like situations. Places reliance on the judgment reported as Saeedullah Khan v. The State (1986 SCMR 1027). Further contends that even in all the investigations it was the appellant who was found guilty; that weapon of offence i.e. pistol P-3 was recovered at the instance of the appellant which did match with the empties sent to the office of the Forensic Science Laboratory earlier to the arrest of the appellant i.e. 21.02.2007 whereas the appellant was arrested on 13.05.2007 and pistol was recovered on 17.05.2007; that the fact of illicit relations of Muhammad Abbas, deceased with Kaneez Bibi has not seriously been denied by the appellant and even otherwise substitution is a rare phenomenon. Prays for dismissal of the appeal and confirmation of death sentence awarded to the appellant.

4

12. We have heard the learned counsel for the appellant, the learned Deputy Prosecutor General as well as the learned counsel for the complainant and perused the record.

13. We have noticed that the F.I.R. of this case stands registered at 10:00 p.m., on 04.02.2007, while according to the prosecution case the occurrence took place at 9:00 p.m. on the same day but it is also evident from the postmortem report (Ex.PD) that the postmortem examination of the deceased was conducted on 05.02.2007, at 10:00 a.m., and according to the Medical Officer, Dr. Muhammad Aslam (PW-3), he conducted the postmortem examination of the dead body as soon as he received the dead body without any delay on his part, this delay in postmortem examination reflects adversely to the prosecution case and sheds doubt about the promptitude in registration of the case. The prosecution has not furnished any explanation of this inordinate delay while in such like situations it has been observed that such delay normally takes place when the time is consumed in preparation of police papers necessary to be produced to the Medical Officer to start with the postmortem examination or in deliberation and consultation. In this regard reference is respectfully made to the judgment reported as Irshad Ahmad v. The State (2011 SCMR 1190) wherein the Hon'ble Supreme Court has held as under:-

“We have further observed that the post-mortem examination of the deadbody of Shehzad Ahmed deceased had been conducted with a noticeable delay and such delay is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses and in cooking up a story for the prosecution before preparing police papers necessary for getting a post-mortem examination of the deadbody conducted.”

Similar view has been expressed by the Hon'ble Supreme Court in the judgment reported as Muhammad Ashraf v. The State (2012 SCMR 419), relevant portion is reproduced as under:-

“We have heard learned counsel for the parties and have perused the record. Incident in the present case had taken place, according to the prosecution on 3-7-2003 at evening time and case of the prosecution is that F.I.R. was recorded at 9-00 p.m. without inordinate delay and on the other hand postmortem was conducted by P.W.3 Dr. Asghar Ali Hunjra on the next day i.e. 4-7-2003 at 10-00 a.m. If F.I.R. was recorded with such a promptitude then why the postmortem was conducted with such a delay. Even otherwise, according to P.W.3Dr. Asghar Ali Hunjra, the time between death and postmortem was 15 to 16 hours. So, the F.I.R. was recorded with a delay and cannot be used against the appellant as a corroborative piece of evidence. ”

14. The prosecution produced Ghulam Muhammad complainant (PW-1) father of the deceased and Azhar Abbas (PW-2) son of the deceased to furnish the ocular account of the occurrence but both the witnesses made dishonest improvements in their statements recorded under Sections 154 and 161 Cr.P.C. regarding the material aspect of the case i.e. the role attributed to the appellant as in the statement (Ex.CW4/A) which was converted into F.I.R. (Ex.CW4/B) and in the statement (Ex.DB) of Azhar Abbas (CW-2) recorded by Muhammad Rustam, Investigating Officer (CW-6), the only injury attributed to the appellant was on the back of Muhammad Abbas, deceased but when after about seven months of the occurrence private complaint (Ex.PA) was filed by the complainant (PW-1), he improved upon his previous statement and maintained that the fire made by the appellant hit Muhammad Abbas, deceased, on the left side of front of his chest exactly in accordance with the medical evidence available on the file and similarly when both the witnesses appeared before the learned trial court they made the same improvements which were duly got confronted by the defence. Such like dishonest improved parts of the statements are not only to be kept out of consideration but the same also render the testimony of the witnesses doubtful. In this regard reference is respectfully made to the judgment reported as Muhammad Rafique & others v. The State & others (2010 SCMR 385) wherein, at page 396, the Hon'ble Supreme Court of Pakistan has observed as under:-

“24. ...This Court in the case of Saeed Muhammad Shah v. State 1993 SCMR 550 observed that if a witness improves his statement on material aspects of the case then such improvement is not worthy of reliance and the evidence of such witness requires corroboration. In the case of Khalid Javed v. State 2003 SCMR 1419 while reiterating the above rule, it was further observed that such witness is to be considered to be wholly unreliable and it is not advisable to place explicit reliance upon his evidence.”

Another important aspect of this case is that Muhammad Khan (acquitted co-accused) was attributed with the injury on the head of the deceased which became the cause of unnatural death of the deceased but the learned trial court acquitted him of the charge while disbelieving the same prosecution evidence i.e. the ocular account, medical evidence and motive, against him and no appeal against his acquittal has been filed. Besides this we have noticed that the demeanor of the complainant (PW-1) also reflects against his probity as during the cross-examination he kept avoiding the straight answers to the direct, simple and important questions put by the learned counsel for the defence, e.g. he replied as under:-

“.....It is correct that my daughter Rifat Bibi was murdered. It is not in my knowledge that my daughter Rifat Bibi was abducted by one Ahmad Khoja being sui juris..... It is not in my knowledge that my daughter Rifat Bibi returned through Punchayat. It is not in my knowledge that my son Muhammad Abbas (since murder) committed the murder of my daughter Rifat Bibi. It is not in my knowledge that my daughter Rifat Bibi kept her relations with Ahmad Khoja after return through punchat, due to this fact my son Muhammad Abbas committed the murder of my daughter Rifat Bibi. It is not in my knowledge that after the murder of Rifat Bibi Ahmad Khoja become enimical towards my son Muhammad Abbas..... It is not in my knowledge that husband of Kameez Bibi namely Asghar was

murdered. It is not in my knowledge that aforesaid Kameez Bibi had got registered a case against Muhammad Khan accused present in the court regarding the murder of her husband.....”

Even both the eyewitnesses are discrepant regarding the very important fact of the murder of Riffat Bibi, daughter of the complainant (PW-1), as he has maintained during the cross-examination as under:-

“It is correct that my daughter Rifat Bibi was murdered.”

While Azhar Abbas (PW-2), who is the grandson of the complainant (PW-1), has maintained as under:-

“It is incorrect that Rifat Bibi was murdered. It is further incorrect that Rifat Bibi was murdered by my father Muhammad Abbas. The witness volunteered that Rifat Bibi died due to her natural death.”

Furthermore, PW-1 has maintained in his examination-in-chief that electric light was on but Azhar Abbas PW-2 did not utter any word regarding the source of light in his examination-in-chief rather during his cross-examination he has replied as under:-

“The I.O. reached on the spot at about 11:00 p.m. The I.O. remained present about 15 minutes on the spot and he told us as it was night time, no further proceedings could be conducted and he left one constable at the place of occurrence and he himself went to the police station. The I.O. did not conducted the spot inspection as it was darkness and late hours of night.”

Such like demeanor of the witnesses and their discrepant statements reflect that they are not the honest witnesses, appearing before the learned trial court not with clean hands.

9

Azhar Abbas (PW-2) and given up PW Muhammad Ayyub along with Kaneez Bibi were admittedly being prosecuted by the court during the days of present occurrence in connection with criminal complaint filed by Uzma Bibi, daughter of Kaneez Bibi, maternal aunt of Bhai Khan appellant and Azhar Abbas co-accused qua the murder of Asghar, husband of said Kaneez. Had both the abovementioned PWs been present at the scene of occurrence and had the motive set up by the prosecution been the motive for the murder of Muhammad Abbas, deceased, PWs Azhar Abbas and Muhammad Ayyub would not have been spared by the accused persons. The presence of the witnesses at the scene of occurrence as alleged in the F.I.R. on the platform (*Thara*) does not find corroboration from the statement of Muhammad Rustam, Investigating Officer CW-6 as according to him:

“It is correct that in site plan prepared by me or by the draftsman platefarm/Baithak of the house of the deceased has not been shown nor showed any cot on the said place. I prepared the rough site plan and got prepared the scaled site plan without any addition or omission on my part. Had the PWs disclosed to me I would have mentioned the same in the site plan.”

Even otherwise, presence of the witnesses on the platform outside their '*Baithak*' in the night of winter i.e. on 4th of February at 9:00 p.m. without any reason is not believable as no explanation in this regard has been given by the prosecution. In this view of the matter, we are of the firm opinion that the eyewitnesses have failed to establish their presence at the scene of occurrence at the relevant time and the prosecution case against the appellant is not trustworthy being not free from doubt.

15. So far as the evidence of motive against the appellant is concerned, we are of the opinion that the motive is always a double

4

edged weapon and in the present case possibility cannot be ruled out that the admitted under progress prosecution of the PWs Azhar Abbas and Muhammad Ayub (given up) in connection with the murder of Asghar, husband of Kaneez Bibi, can also be the motive for false implication of the present appellant.

16. As regards the evidence of recovery, we are of the opinion that in the light of our findings regarding the ocular account it has lost its significance as it is merely a corroborative piece of evidence and itself is not sufficient to prove guilt of the appellant. Similarly, the evidence of abscondence has not been proved being unreliable as is evident from the statement of CW-9 Muhammad Afzal, S.I. who during his cross-examination has stated as under:-

“It is correct that application on the basis of which the non-bailable warrants of arrest were got issued by me from the court of Illaqa Magistrate was not available on the file. It is correct that on the non-bailable warrants of arrest of the accused persons Ex.CW-0/A, Ex.CW-9/B, Ex. CW-09/C did not bear my signatures or report. It is correct on the back of Ex.CW-9/D, Ex.CW-9/E and Ex.CW-9/F regarding my reports for the execution of the proclamation the same were not attested by any inhabitant of the locality.”

Even otherwise, this piece of evidence remained inconsequential to the extent of co-accused Muhammad Khan and Muhammad Azhar already acquitted by the learned trial court.

17. It is, by now, well established principle of law that it is the prosecution, which has to prove its case against the accused by standing on its own legs and it cannot take any benefit from the weaknesses of the case of the defence. In the instant case, the prosecution remained fail to discharge its responsibility of proving the case against the appellant. It is also a well settled proposition of law that if there is a single circumstance which creates reasonable

doubt regarding the prosecution case, the same is sufficient to give benefit of the same to the accused. In Tariq Pervez v. The State (1995 SCMR 1345), the Hon'ble Supreme Court of Pakistan, at page 1347, has been pleased to observe as under:-

“5. ...The concept of benefit of doubt to an accused person is deep-rooted in our country. For giving him benefit of doubt, it is not necessary that there should be many circumstances creating doubts. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused will be entitled to the benefit not as a matter of grace and concession but as a matter of right.”

In Ayub Masih v. The State (PLD 2002 SC 1048), at page 1056 the Hon'ble Apex Court has been pleased to observe as under:-

“...It is hardly necessary to reiterate that the prosecution is obliged to prove its case against the accused beyond any reasonable doubt and if it fails to do so the accused is entitled to the benefit of doubt as of right. It is also firmly settled that if there is an element of doubt as to the guilt of the accused the benefit of that doubt must be extended to him. The doubt of course must be reasonable and not imaginary or artificial. The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”. In simple words it means that utmost care should be taken by the Court in convicting an accused. It was held in The State v. Mushtaq Ahmad (PLD 1973 SC 418) that this rule is antithesis of haphazard approach or reaching a fitful decision in a case. It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic Law and is enforced rigorously in view of the saying of the Holy Prophet (p.b.u.h) that the “mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent.”

The Hon'ble Supreme Court of Pakistan while reiterating the same principle in the case of Muhammad Akram v. The State (2009 SCMR 230), at page 236, has observed as under:-

9

“13. ...It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

18. For what has been discussed above, we are of the opinion that the prosecution has failed to prove its case against the appellant beyond the shadow of doubt, therefore, we **accept** this appeal (Criminal Appeal No.2228 of 2010) filed by Bhai Khan, appellant, set aside his conviction and sentence recorded by the learned Additional Sessions Judge, Arifwala vide judgment dated 27.09.2010 and acquit him of the charge under Section 302(b) P.P.C. by extending him the benefit of doubt who shall be released forthwith if not required in any other criminal case.

19. Consequently, the death sentence awarded to the appellant is **not confirmed** and Murder Reference No.608 of 2010 is answered in the **negative**.



(Muhammad Anwaarul Haq)
Judge

(Syed Shāhbaz Ali Rizvi)
Judge

Mukhtar

APPROVED FOR REPORTING

JUDGE

JUDGE